



Highways (Amendment) Act 1965

1965 CHAPTER 30

An Act to amend the procedure for enforcing the duty imposed on highway authorities and other persons by section 129 of the Highways Act 1959.

[5th August 1965]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendment
of section 129
of Highways
Act 1959.
1959 c. 25.

1. The following section shall be substituted for section 129 of the Highways Act 1959 (which requires highway authorities and other persons liable to maintain highways to remove any obstruction arising in a highway from accumulation of snow or from the falling down of banks on the side of the highway, or from any other cause)—

“Duty to
remove
snow, soil,
etc., which
has fallen
on
highway.

129.—(1) If an obstruction arises in a highway from accumulation of snow or from the falling down of banks on the side of the highway, or from any other cause, the highway authority for the highway shall remove the obstruction.

(2) If a highway authority fail to remove an obstruction which it is their duty under this section to remove, a magistrates' court may, on a complaint made by any person, by order require the authority to remove the obstruction within such period (not being less than twenty-four hours) from the making of the order as the court thinks reasonable, having regard to all the circumstances of the case.

(3) In considering whether to make an order under this section and, if so, what period to allow for the

removal of the obstruction, the court shall in particular have regard to—

- (a) the character of the highway to which the complaint relates, and the nature and amount of the traffic by which it is ordinarily used;
 - (b) the nature and extent of the obstruction; and
 - (c) the resources of manpower, vehicles and equipment for the time being available to the highway authority for work on highways and the extent to which those resources are being, or need to be, employed elsewhere by that authority on such work elsewhere.
- (4) The foregoing provisions of this section shall apply to a person liable to maintain a highway by reason of tenure, enclosure or prescription as they apply to the highway authority for that highway, and references in those provisions to a highway authority shall be construed accordingly.”

2.—(1) This Act may be cited as the Highways (Amendment) Citation Act 1965, and may be cited together with the Highways Acts 1959 and 1961 as the Highways Acts 1959 to 1965.

(2) This Act does not extend to Scotland or Northern Ireland.